§ 155.35 Grand larceny in the third degree.

A person is guilty of grand larceny in the third degree when such person steals property and:

1. when the value of the property exceeds three thousand dollars, or

2. the property is an automated teller machine or the contents of an automated teller machine, or

** 3. the property consists of retail goods or merchandise stolen pursuant to a common scheme or plan or a single, ongoing intent to deprive another or others of the property or to appropriate the property to the actor or another person and the value of the property exceeds three thousand dollars, which value may be determined by the aggregate value of all such property regardless of whether the goods or merchandise were stolen from the same owner. Nothing in this subdivision shall be read to limit the ability to aggregate the value of any property or the ability to charge the larceny of retail goods or merchandise under another applicable provision of law.

** NB There are 2 sb 3's

* 3. when such person commits deed theft of one commercial real property, regardless of the value.

** NB There are 2 sb 3's

Grand larceny in the third degree is a class D felony.